

**BEFORE THE FEDERAL MARITIME COMMISSION**

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PELOTON INTERACTIVE, INC.

Complainant,

v.

FLEXPORT INTERNATIONAL LLC,

Respondent.

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**Docket No. 24-19**

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DECLARATION OF KRISTINE O. LITTLE

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KRISTINE O. LITTLE hereby declares as follows:

1. I am an attorney at Holland & Knight LLP, counsel for Complainant Peloton Interactive, Inc. (“Peloton”) in the above-captioned matter.

2. I am a member in good standing of the Bar of the District of Columbia and have filed an appearance in this proceeding.

3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.

4. On April 28, 2025, Peloton’s counsel sent an email to Flexport International LLC’s (“Flexport”) counsel, addressing Flexport’s Motion to Dismiss and for Sanctions. **Exhibit No. 3** attached to Complainant’s Opposition to Flexport’s Third Motion to Dismiss the Complaint and Motion for Sanctions (“Peloton’s Opposition”) is a true and correct copy of the April 28, 2025, email from Peloton’s counsel to Flexport’s counsel.

5. Flexport did not respond to the April 28, 2025 email.

6. On April 25, 2025, counsel for Peloton served a copy of Peloton’s Supplemental Responses to Flexport’s Interrogatories, including a Bates log. **Exhibit No. 4** attached to

Peloton's Opposition is a true and correct copy of the April 25, 2025, email from Peloton's counsel to Flexport's counsel serving the Supplemental Responses. **Exhibit No. 5** is a true and accurate copy of the Supplemental Responses to Flexport's Interrogatories, as attached to the email dated April 25, 2025. **Exhibit No. 6** is a true and accurate copy of the Bates log, also attached to the email dated April 25, 2025.

7. As of the date of April 25, 2025, Flexport's production required by the Orders of the Presiding Officer entered on March 26, 2025 and April 22, 2025 was incomplete. It remains incomplete. Peloton reserves all rights to further supplement its interrogatory responses once it receives and has time to analyze complete productions from Flexport.

I certify under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: May 12, 2025

/s/ Kristine O. Little  
Kristine O. Little  
Holland & Knight LLP